

Amendment No. 1 to HB2355

Todd
Signature of Sponsor

AMEND Senate Bill No. 2532*

House Bill No. 2355

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 39-17-102(d), is amended by deleting the subsection and substituting:

(1) Except as provided in subdivision (d)(2), an offense under this section is a Class C misdemeanor.

(2)

(A) An offense under this section is a Class B misdemeanor if the person commits the offense while engaged in the business of removing accumulated wastes from subsurface sewage disposal systems, as defined in § 68-221-402.

(B) Upon a conviction for a violation of this section as described in subdivision (d)(2)(A), the court shall notify the commissioner of environment and conservation who shall suspend or revoke the person's permit to engage in the business of removing accumulated wastes from subsurface sewage disposal systems, or refuse to issue the person such permit, as follows:

(i) For a first violation, the commissioner shall suspend the person's permit, or refuse to issue the person such permit, as applicable, for a minimum of thirty (30) days, and may revoke the permit;

(ii) For a second violation, the commissioner shall suspend the person's permit, or refuse to issue the person such permit, as applicable, for a minimum of ninety (90) days, and may revoke the permit; and

(iii) For a third or subsequent violation, the commissioner shall permanently revoke the person's permit or permanently refuse to issue the person a permit, as applicable.

(3) This section does not limit the commissioner's authority to suspend or revoke a permit under § 68-221-403, or rules promulgated under that section. Suspension or revocation under this section must be conducted as a summary action under § 4-5-320(c).

SECTION 2. Tennessee Code Annotated, Section 68-221-413(a), is amended by deleting the subsection and substituting:

(1) Except as provided in subdivision (a)(2), a violation of this part or rules promulgated pursuant to this part is a Class C misdemeanor.

(2)

(A) An offense under § 68-221-406(a)(7) involving the unlawful disposal of sewage or effluent from a subsurface sewage disposal system is a Class B misdemeanor if the person commits the offense while engaged in the business of removing accumulated wastes from subsurface sewage disposal systems.

(B) Upon a conviction for a violation of § 68-221-406(a)(7) as described in subdivision (a)(2)(A), the court shall notify the commissioner who shall suspend or revoke the person's permit to engage in the business of removing accumulated wastes from subsurface sewage disposal systems, or refuse to issue the person such permit, as follows:

(i) For a first violation, the commissioner shall suspend the person's permit, or refuse to issue the person such permit, as applicable, for a minimum of thirty (30) days, and may revoke the permit;

(ii) For a second violation, the commissioner shall suspend the person's permit, or refuse to issue the person such permit, as applicable, for a minimum of ninety (90) days, and may revoke the permit; and

(iii) For a third or subsequent violation, the commissioner shall permanently revoke the person's permit or permanently refuse to issue the person a permit, as applicable.

(3) This section does not limit the commissioner's authority to suspend or revoke a permit under § 68-221-403, or any rules promulgated under that section. Suspension or revocation under this section must be conducted as a summary action under § 4-5-320(c).

SECTION 3. Tennessee Code Annotated, Section 68-221-713(f)(1), is amended by deleting the subdivision and substituting:

(A) Except as provided in subdivision (f)(1)(B), a violation of this part or rules promulgated pursuant to this part is a Class C misdemeanor.

(B)

(i) An offense under § 68-221-711(5) involving the unlawful discharge of sewage or any other waste or contaminant is a Class B misdemeanor if the person commits the offense while engaged in the business of removing accumulated wastes from subsurface sewage disposal systems, as defined in § 68-221-402.

(ii) Upon a conviction for a violation under § 68-221-711(5) as described in subdivision (f)(1)(B)(i), the court shall notify the commissioner who shall suspend or revoke the person's permit to engage in the business of removing accumulated wastes from subsurface sewage disposal systems, or refuse to issue the person such permit, as follows:

(a) For a first violation, the commissioner shall suspend the person's permit, or refuse to issue the person such permit, as applicable, for a minimum of thirty (30) days, and may revoke the permit;

(b) For a second violation, the commissioner shall suspend the person's permit, or refuse to issue the person such permit, as applicable, for a minimum of ninety (90) days, and may revoke the permit; and

(c) For a third or subsequent violation, the commissioner shall permanently revoke the person's permit or permanently refuse to issue the person a permit, as applicable.

(C) This section does not limit the commissioner's authority to suspend or revoke a permit under § 68-221-403, or any rules promulgated under that section. Suspension or revocation under this section must be conducted as a summary action under § 4-5-320(c).

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it, and applies to any violation committed on or after that date.